

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

=====X Index No.

JACOB BLIGE,

Plaintiff,

Plaintiff designates
BRONX County
as the place of trial.

- against -

The basis of venue is
situs of accident/incident.THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
SEAN R. KELLY (Shield # 959727),
and LIEUTENANT CAINE,

Defendants.

**SUMMONS WITH
NOTICE**Plaintiff resides at
2925 West 27th Street
Apt. 228C
Brooklyn, NY 11226
County of Kings=====X
TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
February 27, 2018By: STEVEN SEENER, ESQ.
SEENER & SEENER, ESQS.
Attorneys for the Plaintiff
Office & P.O. Address
48 Wall Street
11th Floor
New York, New York 10005
(212) 766-2050

Defendants' addresses:

1. The City of New York: 100 Church Street, New York, NY 10007.
2. NEW YORK CITY POLICE DEPT. c/o Corp. Counsel 100 Church Street, New York, NY 10007.
3. POLICE OFFICER SEAN R. KELLY (Shield # 959727)– 44TH PRECINCT, 2 East

169th Street, Bronx, NY 10452.

4. LIEUTENANT CAINE - 44TH PRECINCT, 2 East 169th Street, Bronx, NY 10452.

Notice: The nature of this action is VIOLATION OF CIVIL RIGHTS, 42 USC 1983

ACTION; FALSE ARREST; PERSONAL INJURIES; ASSAULT AND BATTERY;
NEGLIGENCE; INTENTIONAL TORT; VIOLATION OF CONSTITUTIONAL
RIGHTS UNDER THE UNITED STATES AND NEW YORK STATE
CONSTITUTIONS.

The relief sought is monetary damages.

Upon your failure to appear, judgment will be taken against you by default for an amount to be determined by a jury or trier of fact at the time of trial and in an amount which exceeds the jurisdictional limitations of all the lower courts which would otherwise have jurisdiction, together with interest from January 14, 2017, and the costs of this action.

INDEX NUMBER PURCHASED AND SUMMONS AND COMPLAINT FILED:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX=====X
JACOB BLIGE,

Index No.

Plaintiff,

-against-

COMPLAINT

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
SEAN R. KELLY (Shield # 959727),
and LIEUTENANT CAINE,Defendants.
=====X**AS AND FOR A FIRST CAUSE OF ACTION**

1. That at all times hereinafter mentioned, the plaintiff was a resident of the County of Kings, City and State of New York.
2. That at all times hereinafter mentioned the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly formed and existing by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned the defendant, THE NEW YORK CITY POLICE DEPARTMENT, was and still is a department of the defendant, THE CITY OF NEW YORK, was duly formed and existing by virtue of the laws of the State of New York.
4. That the plaintiff has complied with all of the conditions precedent to the bringing of this action and more particularly, that a Notice of Claim was served on the defendant, THE CITY OF NEW YORK, within 90 days of Plaintiff's arrest and assault by a police officer of January 14, 2017 (a Notice of Claim was served on or about April

7, 2017); that a statutory hearing pursuant to Section 50-H of the Municipal Law was held on November 17, 2017; and that more than 30 days have elapsed to date from the service of the Notice of Claim and the plaintiff's claims remain unresolved.

5. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, of plaintiff's rights secured by the First, Fourth, and Fourteenth Amendments to the United States Constitution, and the laws of the State of New York and the New York State Constitution.

6. The arrest, false arrest, assault by a police officer, and detainment of the plaintiff constituted a deprivation of the plaintiff's constitutional rights; the plaintiff was battered and assaulted and physically mistreated on January 14, 2017 at approximately 9:00 p.m. at or near 166th Street and Nelson Avenue, Bronx, New York and further the plaintiff appeared in Criminal Court Bronx County on numerous dates and the charges against him were dismissed after trial; the defendants, City of New York, New York City Police Department, Police Officer Kelly, and/or Lieutenant Caine, arrested the plaintiff without probable cause and unlawfully detained and handcuffed him; the plaintiff's rights were violated, in violation of the Fourth and Fourteenth Amendments to the United States Constitution; Plaintiff was deprived of his constitutional and common law rights and rights under the United States Constitution and New York State Constitution when the individual defendants unlawfully arrested, stopped, searched, confined plaintiff, caused the unjustifiable arrest of the plaintiff and by the detention of the plaintiff, and the malicious prosecution of the plaintiff.

7. The occurrence and events involving the plaintiff herein took place

initially on January 14, 2017 at approximately 9:00 p.m. commencing in and/or near to 166th Street and Nelson Avenue, Bronx, New York, and continuing into a police car and a police precinct, namely the 44th Precinct, all in the County of Bronx, City and State of New York.

8. At that time and place plaintiff, JACOB BLIGE, was falsely arrested, unjustly and falsely imprisoned, had his civil rights violated by the defendants, City of New York, New York City Police Dept., Police Officer Kelly, and Lieutenant Caine, and other officers, police officers, agents, servants, and/or employees of the defendants (other police officers being unknown at this time).

9. Plaintiff was falsely arrested and/or arrested without probable cause, without reasonable cause, without legal process and without legal justification; the plaintiff, JACOB BLIGE, was thereafter taken into custody and kept and detained in custody of the Police Department against his will; he was held by officers of the New York City Police Dept. and of the 44th Precinct; plaintiff was held illegally by the City of New York and/or NYC Police Dept.

10. That plaintiff, JACOB BLIGE, was caused to suffer serious, severe physical and emotional injuries and special damages by physical mistreatment by the defendants.

11. That plaintiff, JACOB BLIGE, was attacked, assaulted, brutalized, handcuffed, physically injured, physically mistreated, and held against his will for no legal reason; he was arrested and charged falsely with crimes or violations; he was improperly and illegally held in police custody over seventeen hours and then released.

12. Moreover, the arresting officer or officers were verbally abusive to the

plaintiff.

13. Plaintiff, JACOB BLIGE, was detained; Plaintiff, JACOB BLIGE, was arrested, held, and searched without a warrant or probable cause; the plaintiff, JACOB BLIGE, was held illegally, falsely accused of committing a crime, handcuffed and injured in his body and mind; the plaintiff, JACOB BLIGE, was unlawfully stopped and accosted without a warrant or probable cause.

14. The plaintiff, JACOB BLIGE, was stopped and arrested without cause or justification or legal basis in violation of his rights under the New York State and U.S. Constitutions; Plaintiff, JACOB BLIGE, was subjected false arrest, unlawful and improper imprisonment, illegal detainment, physical assault, physical injuries, to torture and unnecessary force; further the defendants acted under color of law, including specifically Police Officer Kelly and Lieutenant Caine.

15. The detainment of the plaintiff, JACOB BLIGE, was baseless and illegal.

16. Plaintiff is currently a resident of the County of Kings, City and State of New York; he was formerly a resident of Bronx County.

17. Defendants, Police Officer Kelly and Lieutenant Caine, were and still are at all times relevant herein officers, employees, and/or agents of the New York City Police Department and/or the City of New York and residents of the State of New York.

18. On the date of incident, January 14, 2017, defendants, Police Officer Kelly and Lieutenant Caine were employees of the defendants, New York City Police Department and/or City of New York.

19. At all times relevant herein, the defendants, Police Officer Kelly and Lieutenant Caine, were acting under color of state law in the course and scope of their

duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties; they were acting for and on behalf of the defendants, New York City Police Department and/or City of New York, at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department and/or City of New York.

20. Defendant, City of New York, is a municipal entity created and authorized under the laws of the State of New York; it is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible; the defendant, City of New York, assumed the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

21. That on the above stated date and time Police Officer Kelly and Lieutenant Caine accosted, stopped, and interrogated plaintiff without probable cause and assaulted plaintiff.

22. The defendant police officers then arrested and detained the plaintiff and handcuffed him without probable cause or legal justification and falsely arrested and charged the plaintiff;

23. Other police officers observed police officers or the defendants, Police Officer Kelly and Lieutenant Caine, violate plaintiff's rights under the Constitution of the

United States and New York State Constitution and did nothing to prevent the violation of plaintiff's Constitutional Rights.

24. Other police officers failed to intervene to prevent or stop the assault on the plaintiff and plaintiff's mistreatment.

SECOND CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

25. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 24 with the same force and effect as if more fully set forth at length herein.

26. Defendants, Police Officer Kelly and Lieutenant Caine, who were acting in concert with other officers and within the scope of their authority, arrested and caused plaintiff to be imprisoned and violated plaintiff's right to be free of an unreasonable search and seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

27. Plaintiff suffered physical and emotional injuries as a result of his incarceration, prosecution, and assault, as well as humiliation.

28. As a result of plaintiff's unlawful arrest, assault, and search and seizure, amounting to a violation of his civil rights, plaintiff suffered degradation, humiliation, loss of reputation and esteem and various other emotional injuries, as well as economic harm.

THIRD CAUSE OF ACTION

29. Plaintiff reiterates and realleges the facts stated in paragraphs 1 through 28

as if stated fully herein.

30. As a result of their actions, Defendants, acting under “Color of law,” deprived Plaintiff of his rights to freedom from deprivation of liberty without due process of law in violation of the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. 1983.

31. Defendants subjected Plaintiff to these deprivations of his rights either maliciously or by acting with a reckless disregard for whatever Plaintiff’s rights would be violated by his actions.

32. As a direct and proximate result of the acts of Defendants, plaintiff suffered psychological and economic injuries, endured great pain and mental suffering, was deprived of his physical liberty.

FOURTH CAUSE OF ACTION

33. Plaintiff reiterates and realleges the facts stated in paragraphs 1 through 32 as if stated fully herein.

34. As a result of their actions, Defendants, acting under “Color of law,” deprived Plaintiff of his right to freedom from excessive force without due process of law in violation of the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. 1983.

35. Defendants subjected Plaintiff to these deprivations of his rights either maliciously or by acting with a reckless disregard for whatever Plaintiff’s rights would be violated by their actions.

36. These Defendants officers either actively participated in the excessive force or were present and improperly failed to intervene to prevent other officers from

using excessive force although they were in a position to do so.

37. As a result of the aforesaid occurrence, Plaintiff suffered the damages and injuries aforesaid; all Defendants are liable for said damages and injuries.

FIFTH CAUSE OF ACTION

For Violation of Civil Rights

38. Plaintiff reiterates and realleges the facts stated in paragraphs 1 through 37 as if stated fully herein.

39. Defendant, City of New York, and Defendant, New York City Police Department, through its police Commissioner, as a municipal policymaker, in the hiring, training, and supervision of the Defendants, have pursued a policy and custom of deliberate indifference to the rights of persons in their domain, and Plaintiff, violating Plaintiff's rights to freedom from the use of excessive and unreasonable force and freedom from deprivation of liberty without due process of law in violation of the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. 1983 and 42 U.S.C. 1985.

40. As a direct and proximate result of the aforementioned policy and custom of deliberate indifference of Defendants New York City and New York City Police Department, Defendants committed the unlawful acts referred to above and thus, Defendants New York City and New York City Police Department are liable for the Plaintiff's injuries.

SIXTH CAUSE OF ACTION

Failure to Intervene

41. The plaintiff repeats, reiterates, and realleges each and every allegation

contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.

42. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in the presence of other officers.

43. Defendants failed to intervene to prevent the unlawful conduct described herein.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

44. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.

45. The defendant, City of New York, and defendant, New York City Police Department and their employees, servants and/or agents were acting within the scope of their employment and defendants, CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT, did negligently hire, retain, train, and supervise defendants Police Officer Sean Kelly, Lieutenant Caine, and other officers who were unfit for the performance of police duties on January 14, 2017, at the aforementioned location.

EIGHTH CAUSE OF ACTION

ASSAULT AND BATTERY, AND INTENTIONAL TORT

46. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 45 with the same force and effect as if more fully set forth at length herein.

47. The defendants, Police Officer Kelly, Lieutenant Caine, and other police

officers, are guilty of and liable to the plaintiff for their actions for assault and/or battery and/or intentional tort and thereby caused damages to the plaintiff.

WHEREFORE, plaintiff demands judgment against the defendants on each cause of action in a substantial sum of money which exceeds the jurisdictional limits of all the lower courts that would otherwise have jurisdiction, and which amount will be determined by the jury or trier of fact against the defendants at the time of trial; together with the interest, costs and disbursements herein;

- a. Further, that the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.
- b. That the plaintiff has such other and further relief as the Court shall deem just and proper.

Dated: New York, New York
February 27, 2018

By:



STEVEN SEENER, ESQ.
SEENER & SEENER, ESQS.
Attorneys for Plaintiff
Jacob Blige
48 Wall Street, 11th Floor
New York, New York 10005
Telephone No. 212-766-2050

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the courts of the State of New York, shows that affirmant is a partner in the firm of SEENER & SEENER, ESQS., attorneys of record for the Plaintiff in the within action, that affirmant has read the foregoing Complaint and knows the contents thereof; that the same is true to the affirmant's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters affirmant believes it to be true.

Affirmant further says that the reason this verification is made by affirmant and not by said Plaintiff is that Plaintiff is not a residents of the County in which affirmant maintains his office.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are as follows: Document's in affirmant's file.

The undersigned affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
February 27, 2018



STEVEN SEENER, ESQ.

Index No. _____ Year _____
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COUNTY OF BRONX

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Plaintiff,

-against-

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POLICE DEPARTMENT, POLICE OFFICER
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and LIEUTENANT CAINE,

Defendants.

=====X

SUMMONS AND COMPLAINT



SEENER & SEENER, ESQS.
BY: STEVEN SEENER, ESQ.
ATTORNEYS FOR PLAINTIFF
48 Wall Street, 11th Floor
New York, New York 10005
(212) 766-2050

CERTIFICATION

The foregoing DOCUMENTS, AFFIRMATIONS, AFFIDAVITS, PLEADINGS,
EXHIBITS & PAPERS ARE hereby certified pursuant to 22 N.Y.C.R.R. 1301.1

Dated: New York, New York
February 27, 2018



STEVEN SEENER, ESQ.